

25STLC09554 25STLC09554

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC09554 Hearing Date: July 28, 2026 Dept: 26

TENTATIVE RULING:

Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and Associates Inc.'s Motion for Order Requiring Plaintiff to Furnish Security as a Vexatious Litigant is denied.

Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and Associates Inc.'s Motion for Judgment on the Pleadings is scheduled for hearing on 08/18/2026 at 10:00 am in Department 26 in the Spring Street Courthouse.

Plaintiff Elena Berman's Motion to Compel Further Responses; and Motion for Order Deeming Requests for Admission Admitted, is scheduled for hearing on 08/25/2026 at 10:00 a.m.

Plaintiff Elena Berman's Motion for Order Deeming Requests for Admission Admitted Pursuant to CCP § 2033.280, is scheduled for hearing on 09/01/2026 at 10:00 a.m.

Analysis:

Plaintiff Elena Berman ("Plaintiff"), in propria persona, filed the instant action against Defendants Joel Bauer ("Defendant Joel"), Cheryl Bauer ("Defendant Cheryl"), and Joel Bauer and Associates Inc. ("Defendant JB") on December 29, 2025. Defendants filed their Answer on March 3, 2026.

On June 12, 2026, Defendants filed the instant Motion for Order Requiring Plaintiff to Furnish Security as a Vexatious Litigant; in relation to this Motion, Defendants filed a Notice of Automatic Stay on June 24, 2026. In light of the stay, on July 1, 2026, the Court placed Plaintiff's discovery motions scheduled for July 1, 2026 and July 16, 2026, and the Motion for Judgment on the Pleadings scheduled for July 28, 2026, off calendar and to be rescheduled after the lifting of the stay. (Minute Order, 07/01/26.)

Plaintiff filed an opposition to the instant Motion on June 29, 2026. On the same day, Defendants filed an Amended and Corrected Request for Judicial Notice. Defendants then filed their reply in support of the Motion on July 21, 2026. Plaintiff file an objection to the Supplemental Request for Judicial Notice on July 22, 2026.

Discussion

Defendants move for an order that Plaintiff furnish security pursuant to Code of Civil Procedure section 391.1 and 391.3. Section 391.1 states that a motion for such an order “shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.” (Code Civ. Proc., § 391.1, subd. (a).) If the Court finds both of these elements are met, it “shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix.” (Code Civ. Proc., § 391.3, subd. (a).) Defendants contend that Plaintiff is a vexatious litigant as defined by Code of Civil Procedure section 391, subdivisions (b)(2) and (b)(3).

Vexatious Litigant Determination

Code of Civil Procedure section 391, subdivision (b)(2) defines a vexatious litigant as a person who, “after litigation has been finally determined against that person, repeatedly relitigates or attempts to relitigate, in propria persona, the validity of the determination against the same defendant or defendants.” (Code Civ. Proc., § 391, subd. (b)(2).) Defendants point to an earlier Small Claims case between the parties filed by Plaintiff against Defendants on August 25, 2025. (Motion, Hodgson Decl., ¶2; RJN, Exh. A.) The Court takes judicial notice of the records in LASC Case No. 25CHSC01034 (“the Small Claims Action”) pursuant to Evidence Code section 452, subdivision (d). The exhibits are not attached to the original Request for Judicial Notice, but are attached to the Amended and Corrected Request for Judicial Notice filed on June 29, 2026. The Court overrules Plaintiff’s objection to the records as late-filed because, even considering the records, the Court denies the instant Motion. The Small Claims Action sought \$9,000.00 in damages for failure to honor a guarantee or promise, and because Defendants failed to issue a refund. (Ibid.) The Small Claims Action was tried on October 9, 2025, after which the Small Claims Court entered judgment for Defendants. (Id. at Hodgson Decl., ¶3; RJN, Exh. B.) Plaintiff’s appeal of the Small Claims Action was denied on December 2, 2025. (Id. at Hodgson Decl., ¶4; RJN, Exh. C.)

Defendants contend that Plaintiff seeks to relitigate the validity of the determination made in the Small Claims Action. In support of this argument, the instant Motion refers in part to Defendants’ Motion for Judgment on the Pleadings, filed on April 29, 2026, which was previously set to be heard concurrently with the instant Motion. However, in light of the stay under Code of Civil Procedure section 391.6, the Motion for Judgment on the Pleadings is off calendar and the Court cannot consider it in ruling on this Motion. In the Complaint in this action, which asserts causes of action for fraud, intentional misrepresentation, and unfair business practices, Plaintiff again alleges that Defendants promised a full refund, plus \$1,000.00 if Plaintiff did not receive value from their mentoring and training programs. (Compl., ¶¶11-12.) Plaintiff allegedly spent \$8,000.00 on the programs, but was unable to use them; Defendants refused to provide Plaintiff with support or to honor the refund. (Id. at ¶¶14-15.) These facts support each of Plaintiff’s causes of action against Defendants. (Id. at ¶¶19-33.)

Plaintiff disputes that the cases are the same. She characterizes this case as one for fraud and the Small Claims Action as involving a simple demand for a refund. Specifically, it is Plaintiff’s contention that Defendants submitted a fraudulent document in the Small Claims case, and that the Small Claims Court denied her a hearing on the issue. (Opp., pp. 3:22-4:20.) The Complaint in this action does not appear to support Plaintiff’s characterization. The Complaint here makes only a single, vague reference to fraudulent conduct that Plaintiff did not discover until “prior litigation in late 2025.” The remaining allegations in the Complaint are premised on the same conduct by Defendants raised in the Small Claims Action and the same harm suffered by Plaintiff. (See Compl., ¶18.) In both cases, Plaintiff seeks to recover \$9,000.00 based on the \$8,000.00 she paid and the \$1,000.00 refund. (Motion, RJN, Exh. A; Compl., ¶34.) The Complaint in this action also seeks additional damages but without explaining their basis, as well as punitive damages. (Id. at ¶¶34-35.) Asserting different legal theories based upon the same injury in different actions is barred under the doctrine of res judicata. (See *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904.) This, this action appears to be an attempt by Plaintiff to relitigate the claims adversely determined against her in the Small Claims action.

The Court, however, need not resolve that issue at this time. Even assuming that this case is barred under the doctrine of res judicata, that finding alone does not mean Plaintiff is a vexatious litigant. The statute refers to a person who repeatedly relitigates a determination against the same defendants. This action presents at most a single instance of relitigating the Small Claims Action which the Court does not find sufficient to deem Plaintiff a vexatious litigant.

Subdivision (b)(3) defines a vexatious litigant also as a person who, “in any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 391, subd. (b)(2).)

Defendants' argument that Plaintiff should be deemed a vexatious litigant under subdivision (b)(3) is also based on the res judicata / primary right theory. They point to Plaintiff's propounding of "extensive discovery" (Requests for Admissions, Requests for Production, and Special Interrogatories) despite the clear res judicata bar as conduct that is frivolous or solely intended to cause unnecessary delay. Again, the Court does not find that Plaintiff's conduct in prosecuting this action, prior to any ruling that it is barred by res judicata, rises to the level of vexatious. Defendants do not contend that Plaintiff's discovery exceeds that permitted by the Code of Civil Procedure, nor explain why Plaintiff's discovery motions lack merit. These are questions to be resolved upon full consideration of the Motion for Judgment on the Pleadings and the discovery motions. The instant vexatious litigant motion is not the appropriate vehicle by which to make these determinations.

Conclusion

Therefore, Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and Associates Inc.'s Motion for Order Requiring Plaintiff to Furnish Security as a Vexatious Litigant is denied.

Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and Associates Inc.'s Motion for Judgment on the Pleadings is scheduled for hearing on 08/18/2026 at 10:00 am in Department 26 in the Spring Street Courthouse.

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Moving Party to give notice.